

Case Management Conference

**Appearance required.**

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25CV-04984

Russel Daniels vs P&G Towing, et al.

Order to Show Cause Re: Sanctions

**Appearance required. Appear to show cause why sanctions should not be issued for Plaintiff's counsel's failure to appear at the case management conference on April 20, 2026. Notice of this hearing was sent by the clerk's office on April 30, 2026. No declaration has been filed by counsel in advance of the hearing. No proof of service of the summons and complaint on the defendant has been filed.**

Case Management Conference

**Appearance required.**

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25CV-05374

Oscar Garcia vs Yosemite Valley Beef Packing Company, Inc.

Motion to Compel Defendant Yosemite Valley Beef Packing Company, Inc.'s Further Responses to Form Interrogatories - General (Set One) And Special Interrogatories (Set One); Request for Monetary Sanctions in the Amount Of \$5,410.00

**The request to compel further responses to Form Interrogatories, Set One, and Special Interrogatories, Set One, is DENIED.**

**As to the Form Interrogatories, Set One, the standard definition of "INCIDENT" as provided by Judicial Form DISC-001, Sec. 4. Definitions, subdivision (a)(1) is insufficient in this instance rendering the requests vague and ambiguous. As there appears to be multiple actions by Defendant at issue, the use of a special definition may have been more appropriate as the action appear to arise from a course of conduct or series of events occurring over a period of time. (See Judicial Form DISC-001, Sec. 2, subd. (c).)**

**The objections that the term "INCIDENT" is vague and ambiguous are SUSTAINED. The objections as to compound and overbroad are OVERRULED. The objections as to information being withheld on a claim of privilege are OVERRULED WITHOUT PREJUDICE as no information was provided and the objections based on privilege are not applicable at this time. The objections as to lacks foundation are SUSTAINED due to the definition of "INCIDENT" being vague and ambiguous.**

**As to Special Interrogatories, Set One, No. 5, the response is substantially code-compliant. Although Defendant objected, they did respond that after a reasonable attempt to obtain the information they are unable to respond at this time. The Court cannot force Defendant to respond with information they do not have.**

Motion to Compel Defendant Yosemite Valley Beef Packing Company, Inc.'s Further Responses to Requests for Admissions (Set One); Request for Monetary Sanctions in The Amount Of \$5,410.00

**Plaintiff's motion to compel further responses to Requests for Admissions, Set One, is GRANTED IN PART and DENIED IN PART.**

The motion is GRANTED as to Request No. 2. Defendant objects and then states they lack sufficient knowledge and information to be able to admit or deny the request. Code of Civil Procedure section 2033.220, subdivision (3)(c) states that "If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party *shall* state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." (*Italics added.*)

The code section is clear: if Defendant is unable to admit or deny the matter, they must state that they have conducted a reasonable inquiry and the information known or readily obtainable is insufficient for the Defendant to admit or deny. Further, Defendant could have admitted in part and qualified the response. (See, Code Civ. Proc. § 2033.220, subd. (b)(1).) For example, as stated in their opposition statement "Defendant understands that Plaintiff began his employment nearly 20 years ago in 2007, but does not know when his employment actually began, including whether it was 'on or around June 1, 2007.'" (Opp. 2:15-17.) Accordingly, Defendant is ordered to provide a further verified, code-compliant, response to Request No. 2.

The motion is DENIED as to Request No. 10. Even with the limiting language in Plaintiff's meet and confer letter, dated March 25, 2026, of the past four (4) years, the request as drafted is vague and ambiguous as to "hourly employees."

The motion is DENIED as to Request No. 14. Although Plaintiff's meet and confer letter, dated March 25, 2026, adequately limits the response to "Defendant only" (Pltf. March 25, 2026, Ltr., p. 4), it impermissibly creates a conjunctive and/or subparts by incorporating both Labor Code sections 1102.5 and 98.6. (See, Code Civ. Proc. § 2033.060, subd. (f).)

Motion to Compel Defendant Yosemite Valley Beef Packing Company, Inc.'s Further Responses to Requests for Production of Documents (Set One); Request for Monetary Sanctions in the Amount Of \$5,410.00

**The motion to compel further responses to Requests for Production of Documents, Set One, is DENIED. At the time of Defendant's response, Defendant had not yet filed or served any answer nor alleged any affirmative defenses. Plaintiff's recourse is to make a supplemental demand pursuant to Code of Civil Procedure section 2031.050.**

Sanctions:

**The request for monetary sanctions by both parties is DENIED. Both parties acted with substantial justification for bringing and opposing the motions.**

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